



POLICE DEPARTMENT

August 13, 2007

MEMORANDUM FOR: POLICE COMMISSIONER

Re: Detective Hoi Ping Lee
Tax Registry No. 917860
Narcotics Borough Manhattan South
Disciplinary Case No. 81689/06

The above-named member of the Department appeared before me on May 2, 2007, charged with the following:

1. Said Detective Hoi Ping Lee, assigned to Brooklyn South Narcotics, while on-duty, on or about October 2, 2004, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department in that he falsely stated in sum and substance in a field test report that he observed a defendant, identity known to the Department, in possession of marijuana which was recovered from the ground where said defendant dropped it, when in fact said Detective only saw said marijuana on the ground and did not observe said defendant possess said marijuana or drop it to the ground.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

2. Said Detective Hoi Ping Lee, assigned to Brooklyn South Narcotics, while on-duty, on or about November 16, 2004, engaged in conduct prejudicial to the good order, efficiency, and discipline of the Department in that he falsely stated in sum and substance in an accusatory instrument that he observed a defendant, identity known to the Department, in possession of marijuana which was recovered from the ground where said Detective saw said defendant throw it, when in fact said Detective only saw said marijuana on the ground and did not observe said defendant possess said marijuana or throw it to the ground.

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

The Department was represented by Stephen Bonfa, Esq., Department Advocate's Office, and the Respondent was represented by James Moschella, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty as charged.

EVIDENCE

The Department's Case

The Department called Sergeant Greacia Herdsman as its sole witness.

Herdsman, who is currently assigned to the Medical Division, was formerly assigned to the Internal Affairs Bureau ("IAB"). While at IAB, she investigated allegations of misconduct involving the Respondent's arrest of [REDACTED] for possession of marijuana. During the course of her investigation, Herdsman interviewed the Respondent twice. In the first interview, the Respondent told her that he observed marijuana at [REDACTED]'s feet but never actually saw [REDACTED] throw the marijuana to the ground. The Respondent then indicated that another member of the service present at the arrest scene had informed him that [REDACTED] had thrown the marijuana to the ground. Herdsman testified that the Respondent's interview statements were inconsistent with the Field Test Report ("the Report") and Criminal Court Complaint ("the Complaint") that were prepared for [REDACTED]'s arrest. On those documents, the Respondent claimed that he had personally observed [REDACTED] throw the marijuana to

the ground. Yet, when Herdsman interviewed the Respondent a second time, the Respondent reiterated that he never personally observed [REDACTED] throw the marijuana to the ground. The Respondent explained to Herdsman that he had many arrests that day and that it was an oversight that he signed the arrest documents as they were written.

[Department's Exhibit ("DX") 1 is a copy of the Report, dated October 2, 2004. It states, "I observed the prisoner in possession of one Ziploc of marijuana recovered from the ground where defendant dropped it." DX 2 is a copy of the Complaint, dated November 16, 2004. It states, "Deponent states that . . . [he] observed the defendant in possession of a quantity of marijuana. Deponent also . . . states that [he] did recover said quantity of marijuana from the ground, where the deponent saw defendant thrown (sic) it." The Respondent signed both documents below jurats warning that false statements made in the documents are punishable as a class A misdemeanor pursuant to Section 210.45 of the Penal Law.]

As part of her investigation, Herdsman also interviewed [REDACTED] [REDACTED] told Herdsman that he never actually possessed the marijuana. Herdsman ultimately substantiated [REDACTED]'s "disputed arrest" allegation. Upon questioning by the Court, Herdsman testified that she never determined who it was that actually observed [REDACTED] throw the marijuana to the ground.

On cross-examination, Herdsman testified that the Respondent did not physically apprehend [REDACTED] but was later assigned to handle all of the arrests made by the field team that day. She explained that it was common practice for one member of a field team to be assigned as the arresting officer for all of the team's arrests. Herdsman stated that, according to [REDACTED] he was apprehended by the police as he was talking to [REDACTED]

██████ an individual who had sold marijuana to an undercover. ██████ did not contest that there was marijuana at the scene. The only thing he contested was that the marijuana on the ground belonged to him. ██████ had been arrested before.

On the Report, the words "I observed the prisoner in possession of" are pre-printed on the form.¹ Herdsman testified that field team members often help each other prepare arrest paperwork. She explained that the purpose of a Field Test Report is to test whether or not a found substance is a controlled substance. To Herdsman's knowledge, the Respondent never testified in Criminal Court about ██████'s arrest.

On redirect-examination, Herdsman testified that she did not know who actually prepared the Report.

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent, an 11-year member of the Department, is currently assigned to Narcotics Borough Manhattan South. He has never before been the subject of Department charges. On October 2, 2004, he was assigned to Narcotics Borough Brooklyn South. That day, he was participating in a buy-and-bust operation. He explained that a buy-and-bust team consists of six or seven investigators and two undercovers. At Flatlands Avenue and William Street, one of the undercovers purchased a quantity of marijuana from a drug dealer [previously identified as ██████]. The undercover then signaled for the rest of the team to move in. The undercover also

¹ There are blank spaces on the form for the preparer to fill in the type of substance found, as well as the date, time, and location of the incident.

indicated that there was another individual [previously identified as ██████████] present at the scene. The Respondent testified that when the team entered the scene, he and his sergeant grabbed ██████████ while other members of the team grabbed ██████████. The Respondent stated that he did not remember the names of those team members who apprehended ██████████. He explained that he was working on a combined team that day, meaning that there were members of the service from several different commands. After ██████████ was placed under arrest, a member of the team informed the Respondent that he had observed ██████████ drop marijuana to the ground. The Respondent proceeded to recover one Ziploc bag of marijuana from the ground right next to ██████████'s foot. The Respondent testified that at no point in time did he see ██████████ throw marijuana to the ground. ██████████ was arrested for possession of marijuana. The Respondent explained that the arrest was "based on the fact that he possessed marijuana, there was a bag of marijuana by his feet."

After ██████████ and ██████████ were placed in the prisoner van, the field team continued onto other locations. In total, the team arrested six individuals that day. The arrests were processed at the 69 Precinct Station House. The Respondent explained that he was responsible for vouchering and testing the controlled substances that were recovered. According to the Respondent, other team members assisted him by searching and photographing the prisoners and preparing the required paperwork, including the Report. The Respondent explained that the purpose of a Field Test Report is to test whether or not a found substance is a controlled substance. The marijuana found on the ground at ██████████'s feet tested positive for marijuana. The Respondent testified that he signed the bottom of the Report for ██████████'s case, but he did not personally prepare

any other section of the Report. The Respondent asserted that he did not know which team member actually prepared the Report. He stated that he signed the Report because, although he did not see [REDACTED] throw the marijuana to the ground, he observed [REDACTED] in possession of the marijuana. He explained that possession was based on the fact that he was informed by another member of the team that [REDACTED] had dropped the marijuana, and he (the Respondent) recovered the marijuana from next to [REDACTED]'s feet. The Respondent stated that he reviewed the Report before signing it. He further stated that he did not have a problem with the way the Report was prepared. The Respondent testified that [REDACTED] spent a couple of hours in custody before being released on a Desk Appearance Ticket.

The Respondent testified that two weeks after [REDACTED]'s arrest, he was transferred to Narcotics Borough Manhattan South. On November 16, 2004, he was scheduled to appear in court in Manhattan at 9:30 a.m. to testify before a grand jury on a felony narcotics case. He was also scheduled to go to the Brooklyn District Attorney's Office that same day to speak with a "screener" about [REDACTED]'s case. The Respondent stated that he decided to take care of his obligation in Brooklyn before going to court in Manhattan. He brought [REDACTED]'s Report and Online Booking Sheet with him. Some of the other paperwork relating to [REDACTED]'s arrest had been lost in the Respondent's move from one command to another. Relying on the Report, the Respondent told the screener about [REDACTED]'s arrest. The Respondent explained that it was the screener who was responsible for actually preparing the Complaint. When the screener was finished, the Respondent quickly reviewed and signed the Complaint. The Respondent conceded that he might have reviewed the Complaint carelessly because he needed to get

back to Manhattan for his court appearance and he was in a hurry. According to the Respondent, while the Complaint stated that he saw [REDACTED] throw the marijuana, it should have stated instead that he was informed that [REDACTED] threw the marijuana. The Respondent testified that the part of the Complaint that states, "Deponent saw defendant throw it," is not a true statement. The Respondent stated that he never told the screener that he saw [REDACTED] throw the marijuana. When the Respondent was interviewed by IAB about [REDACTED]'s arrest, he stated that he did not see [REDACTED] throw the marijuana to the ground. When the Respondent later explained to an Assistant District Attorney ("ADA") that he never saw [REDACTED] drop the marijuana, the ADA responded that the case against [REDACTED] would probably not go forward. The Respondent never testified in court about [REDACTED]'s case.

On cross-examination, the Respondent testified that he was [REDACTED]'s arresting officer. He stated that he did not notice the bag of marijuana at [REDACTED]'s feet until a member of the team pointed it out to him. The Respondent reiterated that he considered [REDACTED] to be in possession of the marijuana because he was informed by another member of the field team that [REDACTED] had dropped the marijuana, and he (the Respondent) recovered the marijuana next to [REDACTED]'s feet. The Respondent conceded that both the Report and the Complaint contained incorrect statements. He testified that when he originally reviewed the documents, however, they did not strike him as inaccurate. The Respondent further testified that when he signed the documents, he was aware that they contained a warning concerning false statements. Although the Respondent previously stated in an Official Department Interview that he prepared the

Report, he testified again at trial that, in actuality, somebody else prepared the Report for him.

[Respondent's Exhibit ("RX") A is a copy of the Certificate of Disposition for [REDACTED]'s criminal case. It indicates that the charges against [REDACTED] were dismissed pursuant to speedy trial provisions on January 25, 2006. RX B is a tactical plan prepared by the Respondent on the day of [REDACTED]'s arrest.]

FINDINGS AND ANALYSIS

The Respondent stands charged with engaging in conduct prejudicial to the good order, efficiency, and discipline of the Department in that he made false statements on the Field Test Report and Criminal Court Complaint relating to McKnight's arrest. The Report states, "I observed the prisoner in possession of one Ziploc of marijuana recovered from the ground where defendant dropped it." The Complaint states, "Deponent states that . . . [he] observed the defendant in possession of a quantity of marijuana. Deponent also . . . states that [he] did recover said quantity of marijuana from the ground, where the deponent saw defendant thrown (sic) it." In contrast to the statements attributed to him on the Report and the Complaint, the Respondent testified in two Official Department Interviews and at trial that he never actually observed [REDACTED] drop the marijuana to the ground. He explained at trial that the determination that [REDACTED] was in possession of the marijuana was based on the fact that he was informed by another member of the team that [REDACTED] had dropped marijuana and that he (the Respondent) recovered marijuana from next to [REDACTED]'s feet.

The Respondent conceded at trial that both the Report and Complaint contained incorrect statements. The Respondent should have made clear in the documents that his basis for possession was based, at least in part, on information received from another member of the field team. He should have also documented precisely which team member furnished him with the information. Instead, the statements that the Respondent provided in the documents gave an inaccurate impression that it was he, himself, who personally observed McKnight in possession of the marijuana. In addition, the statement on the Complaint specifically regarding the Respondent's observation of [REDACTED] throwing the marijuana was simply not true.

Even if the Respondent did not personally prepare the Report and Complaint, it was his responsibility to carefully review the documents before he signed them. Not only did the Respondent sign the documents under jurats warning that false statements are punishable as a class A misdemeanor, but it is important to remember that [REDACTED] was prosecuted based on the Respondent's statements. By submitting inaccurate documents, the Respondent undermined the criminal case against [REDACTED]. Moreover, the integrity of the entire criminal justice system is threatened when members of the service submit arrest paperwork that is not factually accurate.

Based on the foregoing, I find the Respondent Guilty as charged.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

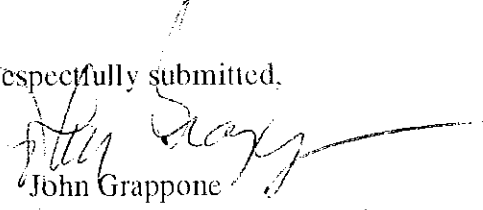
The Respondent was appointed to the Department on July 18, 1996. Information from his personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty of engaging in conduct prejudicial to the good order, efficiency, and discipline of the Department in that he made false statements on a Field Test Report and Criminal Court Complaint. These two documents contained factual inaccuracies, and the Respondent exhibited carelessness in signing and submitting them. There was not, however, any indication that the documents were prepared in ill will.

The Assistant Department Advocate suggested that the Respondent's penalty include a period of dismissal probation. Given the Respondent's positive record and the manner in which he forthrightly explained his actions at trial, it appears that this type of episode will not likely re-occur. This Court, therefore, does not believe that a period of dismissal probation is warranted in this case.

In Disciplinary Case No. 78778/03, a 13-year member with no prior disciplinary record forfeited 30 vacation days for signing another detective's shield number on two supporting depositions for a buy-and-bust arrest. For his similar misconduct, I recommend that the Respondent in the present case likewise forfeit 30 vacation days.

Respectfully submitted,


John Grappone

Assistant Deputy Commissioner – Trials

